

CONDITIONS OF SUPPLY AND DISTRIBUTION AGREEMENT

THIS AGREEMENT is made on 18 July 2016

BETWEEN (1) Halbrook Cable & Fixings Ltd (company number 04118276) whose registered office is at Halbrook House, Marmion Way, Ellersby EL4 7QN ("the Company"); and

(2) Sturmore Rail Group Limited (company number 03996120) whose registered office is at Sturmore House, Calder Rise, Northgate Bridge NB2 5HF ("the Customer").

RECITALS

(A) The Company distributes electrical, lighting, cable and industrial products.

(B) The Customer wishes to buy such products from the Company from time to time and the parties wish to record the conditions on which those purchases are made.

1. DEFINITIONS

1.1 "Conditions" means the conditions set out in this Agreement. "Goods" means the electrical, lighting, cable and industrial products supplied by the Company. "Order" means an order for Goods placed by the Customer.

1.2 A reference to writing includes electronic mail.

2. COMMENCEMENT AND DURATION

2.1 These Conditions take effect on 18 July 2016 and continue until terminated in accordance with clause 9.

2.2 Either party may terminate this Agreement at any time by giving the other not less than three months' written notice.

3. ORDERS

3.1 Each Order placed by the Customer is an offer to purchase Goods on these Conditions and no Order is accepted until the Company despatches the Goods or confirms the Order in writing.

3.2 All purchases of Goods by the Customer from the Company are made on these Conditions.

4. PRICES

4.1 Prices are the Company's published list prices less a trade discount of 34 per cent, unless a special price has been quoted in writing.

4.2 The Company may revise its list prices on 1 April in each year on giving the Customer thirty days' written notice.

5. PAYMENT

5.1 Payment is due within 30 days of the date of invoice.

5.2 Time of payment is of the essence. The Company may charge interest on overdue sums at 3 per cent above the base rate of its bankers from time to time.

6. DELIVERY AND CARRIAGE

6.1 Carriage is paid by the Company on Orders with a net value of GBP 350 or more. On Orders below that value a carriage charge of GBP 15.00 is added to the invoice.

6.2 Delivery dates are estimates and time of delivery is not of the essence.

7. TITLE AND RISK

7.1 Risk in the Goods passes on delivery. Title does not pass until the Company has been paid in full for the Goods and for all other sums then due from the Customer.

8. WARRANTY AND DEFECTS

8.1 The Company will make good, by replacement or credit at its option, Goods shown to its reasonable satisfaction to be defective within twelve months of delivery.

8.2 Claims for shortage or damage in transit must be notified within three Business Days of delivery.

9. TERMINATION

9.1 Either party may terminate under clause 2.2 without giving a reason.

9.2 Either party may terminate immediately if the other becomes insolvent or commits a material breach which is not remedied within thirty days of written notice.

10. ENTIRE AGREEMENT AND PRECEDENCE

10.1 These Conditions prevail over any terms put forward by the Customer, including terms printed on or referred to in the Customer's purchase orders.

10.2 This Agreement is the entire agreement between the parties about the supply of the Goods and replaces all earlier arrangements between them.

11. GOVERNING LAW

11.1 This Agreement is governed by the law of England and Wales and the parties submit to the exclusive jurisdiction of the courts of England and Wales.

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Execution page. This Agreement is entered into on the date written on page 1.

The Company: Halbrook Cable & Fixings Ltd

The Customer: Sturmore Rail Group Limited

SIGNED for and on behalf of Halbrook Cable & Fixings Ltd

A handwritten signature in blue ink, appearing to be 'R. Aldbury', written over a horizontal line.

R. Aldbury

Sales Director

Date: 18 July 2016

SIGNED for and on behalf of Sturmore Rail Group Limited

A handwritten signature in blue ink, appearing to be 'T. Vessey', written over a horizontal line.

T. Vessey

Head of Procurement

Date: 18 July 2016